

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CAMPINS, JULIA
HEARING DATE: 08/27/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED. DO NOT INCLUDE ARGUMENT IN THIS EMAIL – LIST THE TOPICS ONLY.** Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC

FILED BY:

TENTATIVE RULING:

If either party challenges the tentative ruling, the CMC will proceed. If neither party challenges the tentative ruling, the CMC is continued to February 23, 2027, at 8:30 am in Department 10.

Law & Motion

2. 9:00 AM CASE NUMBER: C23-02357
CASE NAME: LISA ROSS VS. CHENETTE CARTER
*HEARING ON MOTION IN RE: VACATE ORDER DENYING MSJ

FILED BY: ROSS, CHARLIE

TENTATIVE RULING:

Before the Court is Defendant Charlie Ross' Motion to Vacate Order denying Motion for Summary Judgment ("Motion").

The Motion is **denied**.

Procedural Background

Plaintiff Lisa Ross filed her initial complaint on September 21, 2023. The operative First Amended Complaint was filed on December 15, 2023. On December 2, 2025, Defendant Charlie Ross sought and obtained a hearing date for the motion for summary judgment/adjudication. The Order set the hearing date for March 12, 2026. It also stated: "You are ordered to file the motion within 7 calendar days of this order." (All caps removed.)

Over two months later, on February 10, 2026, Defendant Charlie Ross filed the Motion for Summary Judgment. On March 11, 2026, the Court issued a Tentative Ruling ("TR") denying the motion without prejudice due to the Defendant's failure to provide the statutorily required notice of the summary judgment/adjudication motion. Defendant did not contest the TR, so it became the Order of the Court at 4:00 p.m. on March 11. (Local Rule 3.43(2).)

Defendant filed the instant Motion on April 8, 2026.

Initial Considerations

Page Numbers

"Each page must be numbered consecutively at the bottom unless a rule provides otherwise for a particular type of document. The page numbering must begin with the first page and use only Arabic numerals (e.g., 1, 2, 3). The page number may be suppressed and need not appear on the first page." (Cal. R. Ct. 2.109.) In addition, the footer of the document "must contain the title of the paper (examples: 'Complaint,' 'XYZ Corp.'s Motion for Summary Judgment') or some clear and concise abbreviation." (Cal. R. Ct. 2.110.)

Defendant's Motion fails to include page numbers anywhere and there is no footer with any information. Counsel is reminded to comply with the Rules of Court going forward.

When the Court references the Motion papers it begins numbering on the page where the Introduction starts.

Unsigned Declaration

California Code of Civil Procedure section 2015.5 "defines a 'declaration' as a writing that is signed, dated, and certified as true under penalty of perjury." (*Kulshrestha v. First Union Commercial Corp.* (2004) 33 Cal.4th 601, 606.) A declaration that is "not signed under penalty of perjury under the laws of the State of California as required by section 2015.5 ... [has] no evidentiary values" and shall not be considered. (*ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 217.)

Defense Counsel, Taira Scott, submits a declaration in support of her motion. The declaration, however, is not signed or dated. As such it is without any evidentiary value and will not be considered. Counsel should comply with all Code requirements going forward.

Analysis

Defendant argues that the Court's order denying his MSJ "was issued after the Court determined that the motion had not been filed within seven (7) days as required by the Court's prior order." (Motion at 1:6-8.) Defendant misreads the Court's Order denying the MSJ without prejudice.

While it is true that the Court noted that Defendant failed to file the MSJ within seven days of the Order giving the hearing date, that was **not** the basis for the Court denying the motion. Instead, the Court's order exhaustively explains that Defendant failed to show that the MSJ was properly served on Plaintiff.

The Court went on to explain:

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

"Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In "light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings." (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

The issue was not the failure to file the MSJ within seven days of the Order. The issue was that Defendant failed to provide the statutorily **required** notice of at least 81 days – plus additional time depending on method of service. As noted above, the Court did not and does not have the authority to shorten that time. As such, the Court cannot vacate the order denying Defendant's MSJ.

It is also worth noting that the Order is not a ruling on the merits. It merely found that proper notice was not given and therefore was explicitly made "**without prejudice** to [Defendant] requesting a new hearing date and filing/serving the papers as required by the Code." (March 12 Order.) Defendant is still free to re-file the papers provided he obtains a hearing date and files/serves the papers with proper notice.

Conclusion

Defendant Charlie Ross' Motion to Vacate Order denying Motion for Summary Judgment is **denied**.

3. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
PAYMENT OF ATTORNEY FEES AND REIMBURSEMENT OF COSTS
FILED BY: REYES, RALPH LOUIE
TENTATIVE RULING:

Plaintiff Ralph Reyes moves for attorneys' fees and reimbursement of costs. His case against Nissan North America, Inc. resolved with an eventual agreement for the Court to determine this motion. Although it appears that Nissan was served with this Motion (via counsel) on April 8, 2026, the Court has received no opposition.

Plaintiff filed this case under the Song-Beverly Consumer Warranty Act on October 27, 2023. After engaging in a modest amount of discovery, the parties signed a settlement agreement on May 27, 2025. The parties agreed that Nissan would pay Reyes's reasonable attorney's fees, costs, and expenses in an amount determined by the Court. Efforts to resolve that issue prior to Court determination appear to have been unsuccessful. Reyes filed a Motion for Attorneys' Fees and Costs on October 15, 2025, with a hearing set for April 9, 2026. On April 6, 2026, the Reyes withdrew his Motion. He refiled it April 8, 2026.

Although the Motion received no opposition, the Court does have an obligation to review the documents and did so. Civ. Code § 1794(d). The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount."

(*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal. App. 4th 807, 816.)

Without any opposition, the Court cannot gain substantial insight into whether certain activities were unwarranted, so the best review the Court can perform is a high-level review to ensure the billing appears reasonable. It does, with one exception. Counsel's flat-fee arrangement for the pre-filing activity is block-billing. It appear to represent approximately 6.5 hours of work, and the Court cannot discern whether that comes even close to what counsel performed. The Court will therefore reduce that amount to two hours of work, which appears reasonable for the work performed.

Counsel also presents sufficient evidence to support the requested hourly rates for the individuals sought. The Court approves the rates of \$600 per hour for Aaron Fhima, \$450 per hour in 2023 and 2024 and \$525 per hour in 2025 for Gabrielle Diamese, and the paralegal rate of \$200 per hour.

Counsel seeks a 0.2% multiplier. The justification for this multiplier is inadequate. This appears to a run-of-the-mill Song-Beverly matter. Although it was litigated more than so may be, that in itself is not reason for a multiplier. A two year case length is actually relatively short comparatively.

Finally, counsel seeks \$6,283.30 for costs. All costs appeared to the Court to be reasonable and recoverable *except* the August 29, 2024 cost for \$210, as the invoice shows it related to a different case in a different county.

The Court therefore awards a total of **\$44,901.80** in fees and **\$6,073.30** in costs.

4. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
1ST AMENDED COMPLAINT
FILED BY: SPECIALIZED LOAN SERVICING, LLC
TENTATIVE RULING:

Before the Court is Defendant Specialized Loan Servicing, LLC and Defendant NewRez, LLC dba Shellpoint Mortgage Servicing fka Specialized Loan Servicing, LLC (collectively, “Defendants”)’s Demurrer. The Demurrer relates to Plaintiff Khoi Senderowicz (“Plaintiff”)’s First Amended Complaint for (1) Violations of Real Estate Settlement Procedures Act; (2) Violations of California Civil Code § 2924 et seq.; (3) Laches, Abandonment, and Equitable Estoppel; (4) Breach of Written Contract; (5) Breach of Implied Covenant of Good Faith and Fair Dealing; (6) Unfair Business Practices; (7) Negligent Loan Servicing; (8) Intentional Infliction of Emotional Distress; (9) Violation of Rosenthal Fair Debt Collection Practices Act; and (10) Declaratory Relief.

For the following reasons, the Demurrer is **sustained** both with and without leave to amend, as described further below.

Judicial Notice

Defendants request judicial notice of several recorded documents. Judicial notice may be taken of “the fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language, assuming there is no genuine dispute regarding the document’s authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265 disapproved on another point by *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919.) The Court **grants** judicial notice of Exhibits 1 through 8 and exhibits 10 and 11.

With respect to the Defendants’ request for judicial notice of Exhibit 9 (a newspaper article from SFGATE), it is unclear whether the fact that a particular newspaper published an article on a particular subject on a particular date is either “of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute” (Evid. Code, § 452, subd. (g)) or “are

not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy” (*id.*, subd. (h)). (Compare *People v. Massie* (1998) 19 Cal. 4th 550, 566, fn. 4 [denying request to take judicial notice of newspaper articles] and *People v. Ramos* (1997) 15 Cal. 4th 1133, 1167 [affirming refusal to take judicial notice] with *Norgart v. Upjohn Co.* (1999) 21 Cal. 4th 383, 408, [taking judicial notice that a “controversy” had arisen in the popular press, without specifying the media involved], *People v. Hardy* (1992) 2 Cal. 4th 86, 174, fn. 24 [taking judicial notice of newspaper articles], and *People v. Jurado* (1981) 115 Cal. App. 3d 470, 482 [same].) Under Evidence Code section 452, subdivision (h), the Court has discretion whether to take judicial notice of this article. The Court declines to do so. The motion for judicial notice is **denied** in part, as to exhibit 9.

Legal Standard

“The function of a demurrer is to test the sufficiency of the complaint as a matter of law.” (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court “assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law.” (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Analysis

1. Violations of Real Estate Settlement Procedures Act (RESPA)

Defendants demur to this cause of action on the grounds that it lacks particularity, none of the cited Regulation provisions govern Plaintiff’s loan, section 1024.38 confers no private right of action, it is barred by the three-year statute of limitations, and RESPA and TILA do not apply to credit transactions for business or commercial purposes.

As Defendant notes, federal courts have recognized section 1024.38 does not provide a private right of action but rather is to be enforced by government regulators. (See, e.g., *Courtois v. Shellpoint Mortg. Servicing, LLC* (C.D. Cal. 2020) 2020 U.S. Dist. LEXIS 104468 at *3 [“[Section] 1024.38 does not provide a private right of action”]; see also *Moore v. Wells Fargo Bank, N.A.* (N.D. Cal. Aug. 28, 2023) 2023 WL 5538268, at p. *4 (“this section does not create a private right of action”); *Joussett v. Bank of Am., N.A.* (E.D. Pa. Oct. 6, 2016) 2016 WL 5848845, at p. *5 (quoting 78 Fed. Reg. at 10,697-98) (“The Bureau...will be able...to assure compliance with these requirements but there will not be a private right of action to enforce these provisions”); *In re Wells Fargo Forbearance Litigation* (N.D. Cal. May 2, 2023) 2023 WL 3237501, at p. *5 (same); *Courtois v. Shellpoint Mortgage Servicing, LLC* (C.D. Cal. May 26, 2020) 2020 WL 13586024, at *1 (“numerous other courts have concluded that 12 C.F.R. § 1024.38 does not provide a private right of action”); and *Austerberry v. Wells Fargo Home Mortgage* (E.D. Mich. Dec. 7, 2015) 2015 WL 8031857, at *5 (“while Plaintiff is protected by § 1024.38(b)(2), she lacks a private right of action to enforce [it]”).

Although the unpublished federal district court cases Defendants cite are not binding, the Court nonetheless finds them persuasive and instructive in interpreting the federal regulation at issue.

Moreover, Plaintiff does not address this ground in her opposition. (*Herzberg v. County of Plumas* (2005) 133 Cal.App.4th 1, 20 [noting a plaintiff's failure to oppose a demurrer to a cause of action or portion thereof constitutes an abandonment of the issue or claim].)

Plaintiff also fails to meaningfully engage with Defendants' argument that none of the cited Regulation X provisions govern Plaintiff's loan. Specifically, that Regulation X Subpart C (12 C.F.R. §§ 1024.30-1024.41), applies only "to any mortgage loan, as that term is defined in § 1024.31" and that Section 1024.31 defines "mortgage loan" to exclude "open-end lines of credit (home equity plans)." (Demurrer at 12:2-5.) Plaintiff's argument that her allegation that "RESPA and its implementing regulations were in full force and effect and applied to Defendants' servicing of Plaintiff's HELOC" must be accepted as true for purposes of demurrer is incorrect. (See *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 ["We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law."].) Home equity plans are expressly excluded from Regulation X.

Because these defects cannot be cured by amendment the Defendants' demurrer to the first cause of action for violation of RESPA is **sustained**, without leave to amend.

2. Violations of California Civil Code § 2924 et seq.

Defendants demur to the second cause of action on the grounds that the claim is moot because a Notice of Rescission was recorded on March 10, 2025 and Plaintiff no longer owns the property. Defendants also demur on the grounds that § 2924c does not give borrowers the right to sue for damages, HBOR does not apply to the HELOC, which is a second-position deed of trust, the FAC fails to allege the statutory trigger condition (when buyer pays "the entire amount then due"), Plaintiff cannot show a violation because a Notice of Rescission was recorded, and Plaintiff concedes default by challenging only a portion of the arrears amount stated in the Notice of Default.

As a threshold issue, HBOR does not apply to the HELOC in this case. On its face, the FAC alleges that the HELOC is a second lien. (FAC at ¶ 7.) Judicially noticeable documents also confirm that the HELOC is a recorded second-position lien. (RJN Exs. 1, 4.) Pursuant to Civil Code section 2924.15 subdivision (a), "paragraph (5) of subdivision (a) of Section 2924 and Sections 2923.5, 2923.55, 2923.6, 2923.7, 2924.9, 2924.10, 2924.11, and 2924.18 shall apply only to a first lien mortgage or deed of trust that is secured by owner-occupied residential real property containing no more than four dwelling units."

Because this defect cannot be cured by amendment, the Defendants' demurrer to the second cause of action for violations of Civil Code § 2924 is **sustained**, without leave to amend.

3. Laches, Abandonment, and Equitable Estoppel

Defendants demur to this cause of action on the grounds that laches is an affirmative defense, not a cause of action, equitable estoppel is not an independent cause of action, and California does not recognize "abandonment" of a security interest as a freestanding cause of action against a beneficiary or servicer.

In opposition, Plaintiff argues that "[t]o the extent the Court agrees, Plaintiff respectfully requests leave to amend to fold the factual allegations supporting this cause of action ... into the Tenth Cause of Action for Declaratory Relief[.]" (Opp. at 5:15-19.) However, as discussed further below, Plaintiff did not oppose Defendants' demurrer to the declaratory judgment cause of action.

Plaintiff fails to engage with the merits of Defendants' argument. The Demurrer Plaintiff's third cause of action for laches, abandonment, and equitable estoppel is **sustained**, with leave to amend.

4. Breach of Written Contract (HELOC Agreement)

Defendants demur to this cause of action on the grounds that neither Defendant is a party to the HELOC, the FAC does not plead the contract, the statute of frauds precludes Plaintiff's alleged "unilateral" maturity date change theory, and Plaintiff does not plead her own performance under the HELOC.

Plaintiff fails to engage with Defendants' threshold argument that they are not a party to the HELOC. She argues, without authority, that "[h]aving stepped into the servicing relationship and exercised its rights and obligations, a servicer may be held to the terms of the underlying agreement it purports to enforce." (Opp. at 5:27-28.)

Federal courts applying California law have dismissed the notion that loan servicers, as agents for the holder of the loan, are parties to deeds of trust or the mortgage, or that a loan servicer is in privity with the holder of the loan. (See, e.g., *Conder v. Home Savings of America* (C.D. Cal. 2010) 680 F.Supp.2d 1168, 1174 ["The fact that Aurora [servicer] entered into a contract with HSA [mortgagee] to service Plaintiff's loan does not create contractual privity between Aurora and Plaintiff"]; *Lombay v. SCME Mortg. Bankers* (N.D. Cal. May 26, 2009, No. C-9-1160 SC) 2009 U.S. Dist. LEXIS 44158 at p. 14 ["a loan servicer . . . is not a party to the Deed of Trust itself"]; *Connors v. Home Loan Corp.* (S.D. Cal. May 9, 2009, Civ. No. 08cv1134) 2009 U.S. Dist. LEXIS 48638 at p. 17 ["Plaintiff has failed to assert or differentiate the roles and functions of defendants [servicer] ASC and [mortgagee] US Bank. . . . If ASC is a loan servicer, ASC is not a party to the Deed of Trust itself"].)

The Court is persuaded by the above authority. Neither Defendant servicer is directly identified as a party to the deed of trust, which states only that "Trustor agrees that all payments under the Secured Debt will be paid when due and in accordance with the terms of the Secured Debt and this Security Instrument." (RJN Ex. 1 at ¶ 5.) The deed of trust specified the "Lender" (National City Bank) as being responsible for application of payments made by the borrower. A lender may delegate tasks to a servicer without establishing privity of contract between the servicer and the mortgagor, and thereby rendering the servicer liable for breach of contract. "[A]n agent cannot be held liable for breach of a duty which flows from a contract to which he is not a party." (*Filippo Industries, Inc. v. Sun Ins. Co.* (1999) 74 Cal.App.4th 1429, 1443.)

Defendants' demurrer to Plaintiff's fourth cause of action for breach of contract is **sustained**, with leave to amend.

5. Breach of Implied Covenant of Good Faith and Fair Dealing

Defendants demur to this cause of action on the grounds that neither Defendant is a party to the HELOC, Plaintiff fails to plead her performance, the contractual provisions are not pled, and the statute of frauds bars her theory. Defendants demur on the additional grounds that this cause of action is duplicative of Plaintiff's breach of contract claim.

The covenant of good faith and fair dealing is implied by law in every contract and exists to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349-350.) The "covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct that frustrates the other party's rights to the benefits of the agreement." (*Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 36.) "Breach of the covenant of good faith and fair dealing gives rise to a contract action ... or, in limited contexts, a tort action with the tort measure of compensatory damages and the right to recover punitive damages" (1 Witkin, Summary of Cal. Law (10th ed.

2005) Contracts, § 800, p. 894, citations & italics omitted.)

Plaintiff's failure to allege a predicate contract is fatal to her claim for breach of the implied covenant of good faith and fair dealing. Defendants' demurrer to Plaintiff's fifth cause of action for breach of the implied covenant of good faith and fair dealing is **sustained**, with leave to amend.

6. Unfair Business Practices (§ 17200)

Defendants demur to this cause of action on the grounds that Plaintiff lacks standing and the FAC fails the "reasonable particularity" standard for UCL claims.

"[C]auses of action under the ... UCL must be stated with reasonable particularity, which is a more lenient pleading standard than is applied to common law fraud claims." (*Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261; accord, *Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 46 [holding claims for unfair business practices need not be pled specifically]; see also *Graham v. Bank of America, N.A.* (2014) 226 Cal.App.4th 594, 614 [standing-causation requirement of unfair business practices is not met if the plaintiff would have suffered the same harm whether or not the defendant complied with law]; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 254 [regarding the requirement to allege standing, including injury, and lost money or property, and alleging an economic injury also suffices].) Additionally, a cause of action for violation of Business and Professions Code section 17200 fails if it is predicated on a violation of statutory law that fails. (*Wolski v. Fremont Investment & Loan* (2005) 127 Cal.App.4th 347, 357.)

Here, Plaintiff has failed to allege facts sufficient to state a statutory cause of action under either RESPA or Civil Code section 2924. That is fatal to her claim for unfair business practices. Defendants' Demurrer to the sixth cause of action is **sustained**, with leave to amend.

7. Negligent Loan Servicing

Defendants demur to this cause of action on the grounds that it is not a recognized cause of action. Defendants further argue that even if construed as a common-law negligence claim, it fails for lack of duty.

Plaintiff implicitly concedes that negligent loan servicing is not a recognized cause of action by omitting to address this argument in opposition. (*Herzberg, supra*, 133 Cal.App.4th at p. 20.)

To state a cause of action for negligence, a plaintiff must allege: (1) the defendant owed the plaintiff a duty of care; (2) the defendant breached that duty, and (3) the breach proximately caused the plaintiff's damages or injuries. (*Lueras v. BAC Home Loans Servicing, LP* (2013) 221 Cal. App. 4th 49, 62.) "The existence of a duty of care owed by a defendant to a plaintiff is a prerequisite to establish a claim for negligence." (*Nymark v. Heart Fed. Savings & Loan Ass'n* (1991) 231 Cal. App. 3d 1089, 1096.)

In *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 the California Supreme Court held that the economic loss rule precludes imposing a tort duty of care on a lender when processing loan modification applications. This holding precludes a negligence claim arising solely out of the loan modification process. The FAC alleges that "Defendants owed a duty to exercise reasonable care" that "was established by federal and state statutes, including RESPA." (FAC at ¶ 69.) However, as described further above, Plaintiff does not have a cause of action under RESPA.

The FAC is silent with respect to what other statute might supply the required duty of care. Plaintiff has failed to allege the threshold essential element of negligence.

Defendants' demurrer to Plaintiff's seventh cause of action for negligent loan servicing is **sustained**,

with leave to amend.

8. Intentional Infliction of Emotional Distress

Defendants demur to this cause of action on the grounds that the FAC does not plead its essential elements: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) actual and proximate causation. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.)

To satisfy the first element, conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal. 4th 965, 1001 [quoting *Christensen v. Superior Ct.* (1991) 54 Cal. 3d 868, 903]; see also *McMahon v. Craig* (2009) 176 Cal. App. 4th 1502, 1515-16 [“Generally, conduct will be found actionable where the recitation of the facts to an average member of the community would arouse his resentment against the actor, and lead him to exclaim, Outrageous!”].)

In opposition, Plaintiff argues that her allegations at paragraphs 74 through 77 satisfy this standard. The Court cannot agree. These allegations are insufficient to support a cause of action for IIED.

Defendants’ demurrer to Plaintiff’s eighth cause of action for IIED is **sustained**, with leave to amend.

9. Violation of Rosenthal Fair Debt Collection Practices Act (Civ. Code § 1788 et seq.)

Defendants demur to this cause of action on the grounds that it lacks particularity, the FAC fails to plead that the HELOC qualifies as “consumer debt,” the complained about conduct does not qualify as “debt collection,” the Notice of Default’s recording and related statutorily-required foreclosure communications are privileged, and the Code-based allegations are barred by the Act’s one-year statute of limitations.

Plaintiff argues in opposition that “The FAC alleges that Defendants made false, deceptive, and misleading representations regarding the amount owed and the loan’s status, and engaged in harassing and oppressive collection conduct (FAC ¶¶ 80-81)—conduct distinct from the mechanics of the nonjudicial foreclosure process itself.” (Opp. at 7:19-22.) This argument fails to engage with the merits of Defendants’ grounds for their demurrer.

Defendants’ demurrer to Plaintiff’s ninth cause of action for violation of the Rosenthal Fair Debt Collection Practices Act is **sustained**, with leave to amend.

10. Declaratory Relief

Defendants demur to this cause of action on the ground that there is no actual controversy between the parties. Plaintiff does not oppose Defendants’ demurrer to this cause of action. Defendants’ demurrer to the tenth cause of action for declaratory relief is **sustained**, without leave to amend.

5. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
STRIKE PORTIONS OF THE 1ST AMENDED COMPLAINT
FILED BY: SPECIALIZED LOAN SERVICING, LLC
TENTATIVE RULING:

Before the Court is Defendant Specialized Loan Servicing, LLC and Defendant NewRez, LLC dba

Shellpoint Mortgage Servicing fka Specialized Loan Servicing, LLC (collectively, "Defendants")'s motion to strike portions of Plaintiff Khoi Senderowicz ("Plaintiff")'s First Amended Complaint. Plaintiff opposes the Motion.

For the following reasons, the Motion is **granted-in-part** and **denied-in-part**, as described further below.

Legal Standard

California Civil Code ("CC") § 3294 provides in relevant part:

In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant...

(1) "Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

(3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294.)

California Code of Civil Procedure § 436 provides:

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper:

(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.

(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc. § 436.)

Motion

The Motion seeks an order striking the First Amended Complaint in its entirety as untimely; or, in the alternative, striking specific allegations as follows:

- The following allegation in paragraph 71 of the Seventh Cause of Action (Negligent Loan Servicing): "The extreme nature of Defendants' misconduct rises to the level of gross negligence warranting punitive damages."
- The phrase "and attorney's fees" from paragraph 82 of the Ninth Cause of Action (Violation of Rosenthal Fair Debt Collection Practices Act).
- Prayer for Relief ¶ 2 ("Restitution of all improper payments made under false pretenses");
- Prayer for Relief ¶ 3 ("Punitive damages where authorized by law");
- Prayer for Relief ¶ 6 ("Permanent injunctive relief prohibiting foreclosure based on the invalid

Notice of Default”);

- Prayer for Relief ¶ 7 (“Mandatory injunctive relief requiring rescission of the Notice of Default and restoration of proper loan terms”); and
- Prayer for Relief ¶ 9 (“Reasonable attorney’s fees and costs under applicable statutes and contractual provisions”).

Analysis

As a threshold issue, the Court declines to strike the entire FAC as untimely for the seventeen-day gap between the expiration of the seven-day filing window and the FAC’s actual filing date. Instead, the Court will address the merits of Defendants’ specific challenges to the FAC.

Injunctive Relief

Defendants move to strike Plaintiff’s request for injunctive relief on the grounds that Plaintiff’s requested relief is moot; specifically, the Notice of Default recorded on December 27, 2023 was rescinded by Notice of Rescission recorded March 10, 2025 (RJN, Ex. 3) and Plaintiff then satisfied the loan in full and sold the Property to Catapult Custodian LLC on December 22, 2025. (RJN, Ex. 5.) Plaintiff does not oppose striking Prayer ¶ 6 or Prayer ¶ 7. Defendants’ motion is **granted** with respect to the injunctive relief prayers, without leave to amend.

Restitution

Defendants move to strike Plaintiff’s prayer for restitution on the grounds that Plaintiff holds no vested ownership interest in the payments she made, the voluntary-payment doctrine bars her claim, and her predicate claims for violation of Civil Code § 2924 and Unfair Business Practices fail for reasons argued in the concurrently filed Demurrer.

“In the context of the UCL, ‘restitution’ is limited to the return of property of funds in which plaintiff has an ownership interest (or is claiming through someone with an ownership interest).” (*Madrid v. Perot Systems Corp.* (2005) 130 Cal.App.4th 440, 453.) “Thus, the California Supreme Court has defined a UCL order for restitution as one ‘compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.’” (*Id.*) “The California Supreme Court has held that, while restitutionary disgorgement [of profits] may be an available remedy under the UCL, nonrestitutionary disgorgement [of profits] is not available in a UCL individual action or in a UCL representative action....” (*Id.* at 460.)

Here, Plaintiff has not alleged that Defendants holds property or funds that Plaintiff has an ownership interest in. Rather, she alleges she was damaged by Defendants’ conduct in that she was forced into bankruptcy and suffered high-interest refinancing costs. These are not the sort of injuries that give rise to the restitutionary remedy under the UCL.

Defendants’ motion is **granted**, with leave to amend.

Punitive Damages

Defendants move to strike Plaintiff’s punitive damages allegations on the grounds that Plaintiff’s FAC “has not alleged any actual facts which support the contention that any conduct on the part of Defendants was undertaken with the requisite malice, oppression, intent, or fraud to bring about punitive damages.” (Mot. at 6:14-16.) The Court is inclined to agree.

Here, there are insufficient factual allegations to support circumstances of fraud, malice or oppression

on the part of this Defendant. The mere fact that an intentional tort is alleged is not sufficient. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) Conclusory allegations of fraud, oppression and malice are not enough. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.)

Furthermore, when seeking punitive damages against a corporation like Defendants, Plaintiff must allege “advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud or malice ... on the part of an officer, director or managing agent of the corporation.” (Civ. Code §3294.) A review of Plaintiff’s FAC shows that there are no allegations regarding the conduct of an officer, director, or managing agent of either Defendant. Accordingly, this requirement of pleading punitive damages against a corporation has not been satisfied. (See CCP § 3294(b).)

For the foregoing reasons, Defendants’ motion is **granted** with respect to the punitive damages allegations within paragraph 71 of the seventh cause of action and paragraph 3 of the prayer for relief, with leave to amend.

Attorney’s Fees

Defendants move to strike Plaintiff’s prayer for attorney’s fees on the grounds that Plaintiff has not alleged any statutory or contractual provision that would entitle her to attorney’s fees.

While Defendants are correct that Plaintiff has not alleged any contractual provision that would entitle her to attorneys’ fees, unsupported attorneys’ fee allegations need not be stricken pursuant to a motion to strike, since later discovery may reveal a basis for their recovery. (*Camenisch v. Superior Court* (1996) 44 Cal.App.4th 1689, 1699.) In addition, “[t]here is no requirement that a party plead that it is seeking attorney fees, and there is no requirement that the ground for a fee award be specified in the pleadings.” (*Yassin v. Solis* (2010) 184 Cal.App.4th 524, 533.) Attorneys’ fees are recoverable as costs if authorized by statute, contract or law. (CCP § 1033.5, subd. (a)(10).)

As a consequence, Defendants’ motion is **denied** with respect to the attorney’s fees allegations.

6. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

7. 9:00 AM CASE NUMBER: C25-03103
CASE NAME: CYLUS JASIAH MARTIN-HAREN, VS. LINDA CHU, M.D.

SEAL DECLARATIONS IN SUPPORT OF MOTION TO COMPEL ARBITRATION THAT CONTAIN
CONFIDENTIAL INFORMATION

FILED BY: CHU, M.D., LINDA

TENTATIVE RULING:

Continued by the Court to September 20, 2026.

8. 9:00 AM CASE NUMBER: C25-03197

CASE NAME: RODDA ELECTRIC, INC. VS. TMW & ASSOCIATES, INC.

ENFORCE SETTLEMENT AGREEMENT

FILED BY: HAGGERTY CONSTRUCTION, INC.

TENTATIVE RULING:

Defendants and cross-complainants Haggerty Construction Inc. (“Haggerty”) and TMW & Associates, Inc. (“TMW” together with Haggerty, “Defendants”) bring the instant motion to enforce settlement agreement (the “Motion”) in regards to the complaint filed by plaintiffs and cross-defendants Rodda Electric, Inc. (“Rodda”), Bluebird Property Investments, LLC (“Bluebird”), and Eagle Peak Investments, LLC (“Eagle Peak”) (together referred to as “Plaintiffs”).

For the reasons discussed below, Defendants’ Motion is DENIED.

Background

Allegations from the First Amended Complaint (“FAC”)

Plaintiffs Rodda Electric, Inc., Bluebird Property Investments, LLC, and Eagle Peak Investments, LLC (“Plaintiffs”) allege that they hired TMW as the general contractor to construct improvements at 385 Carol Court, Brentwood, California (the “Property”). (FAC, ¶ 21.) They assert that after the TMW principal who signed the contract between them left to work for Haggerty Construction, Inc., HCI took over general contracting duties. (*Id.* at ¶ 22.)

TMW/HCI subcontracted work to numerous defendants. (FAC, ¶ 23.) Plaintiffs allege the work on the project was defective, did not comply with plans or industry standards, and resulted in construction defects in multiple components including concrete walls, joints, painting, awnings, storefront, flatwork, topping slab, waterproofing, roofing, paving, and exterior doors. (*Id.* at ¶¶ 24–25.) They claim defendants failed to prevent or correct defects, leaving the Property in a dangerous and defective condition and causing continuous and progressive damage. (*Id.* at ¶¶ 26–29.)

Plaintiffs further allege project delays and numerous punch-list items led them to withhold payments, prompting TMW/HCI to record a mechanics lien. (FAC, ¶¶ 30–31.) The parties negotiated a “Close Out Agreement” intended to resolve only the lien dispute and punch-list issues. (*Id.* at ¶ 32.) Plaintiffs drafted the agreement (Exhibit A), after which TMW/HCI returned a “Revised Close Out Agreement” with “some modifications” (Exhibit B). (*Id.* at ¶ 33.) Plaintiffs allege they signed the revised version without counsel, believing the changes were minor. (*Id.* at ¶¶ 34–35.) Later they learned the additional language operated as a broad release of all claims relating to the project—something Plaintiffs assert was never agreed to and provided no consideration. (*Id.* at ¶¶ 36–38.)

Based on these allegations, Plaintiffs assert claims for: (1) breach of written contract (FAC, ¶¶ 39–43); (2) breach of oral contract (*Id.* at ¶¶ 44–49); (3) negligence (*Id.* at ¶¶ 50–56); (4) breach of implied warranty (*Id.* at ¶¶ 57–63); (5) breach of express warranty (*Id.* at ¶¶ 64–70); (6) products liability (*Id.* at ¶¶ 71–76); (7) reformation for unilateral mistake (*Id.* at ¶¶ 77–86); and (8) rescission for unilateral mistake (*Id.* at ¶¶ 87–97). Plaintiffs seek general and special damages, civil penalties, interest, attorney fees and costs, and either reformation or rescission of the Revised Close Out Agreement. (FAC, pp. 18-19.)

Allegations from Defendants' Cross-Complaints

Defendants Haggerty and TMW have each filed a cross-complaint against Plaintiffs (Haggerty XC and TMW XC, respectively). The Haggerty and TMW XCs are almost identical in their allegations, and each assert the same claims and seek the same amount of damages. (*Compare* Haggerty XC with TMW XC.) Both XCs seek damages in the amount of \$505,696.98 (Haggerty XC, p. 15; TMW XC, p. 16), based on claims of: (1) breach of contract; (2) declaratory relief; (3) express indemnity; (4) breach of contract re: additional insurance; (5) implied indemnity; (6) equitable indemnity; (7) contribution and apportionment; and (8) declaratory relief. (Haggerty XC, pp. 1-15; TMW XC, pp. 1-16.) Defendants also seek attorney fees and costs, a declaration that the Settlement Agreement is binding on Plaintiffs and TMW is not responsible for any of the allegations in Plaintiffs' operative complaint, a declaration that each cross-defendant is responsible for any sums awarded to Plaintiffs against TMW, and pre-judgment interest. (Haggerty XC, pp. 15-16; TMW XC, p. 16.)

The XCs are based on allegations that Plaintiffs and Defendants entered into a Contract Close Out Settlement Agreement ("Settlement Agreement") in November 2023, based on a prior dispute of the parties wherein Defendants claimed that Plaintiffs failed to pay \$538,951.25 for work on the project, for which Defendants recorded a mechanic's lien and filed a lawsuit in Contra Costa Superior Court (C23-02643). (Haggerty XC, pp. 8-10; TMW XC, pp. 8-11.) Defendants assert that the Settlement Agreement and its release and 1542 waiver bar the Plaintiffs' current claims in the FAC. (*Ibid.*)

Request for Judicial Notice:

Defendants request the Court to take judicial notice of: (1) the certificate of occupancy for the Property; (2) the notice of substantial completion of the project; (3) a mechanic's lien recorded against the Property during an earlier dispute between the parties; (4) the complaint filed in *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643; and (5) the first amended complaint filed in this instant matter. Defendants request judicial notice of the above-referenced documents via Evidence Code sections 452 and 453, no subdivisions identified. (Request for Judicial Notice, p. 1.)

The Court GRANTS Defendants' requests for judicial notice nos. 1-5, as to the existence of the documents but not the truth of the matters asserted therein. (Evid. Code, § 452, subds. (c), (d).) "Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, ... the truthfulness and proper interpretation of the document are disputable." (*Herrera v. Deutsche Bank Nat'l Trust Co.* (2011) 196 Cal.App.4th 1366, 1375.)

The Court, on its own motion, takes judicial notice of the docket and filings in the *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, matter, Contra Costa County Superior Court, case no. C23-02643. (Evid. Code, § 452, subd. (d).)

Discussion

Moving Papers

Defendants argue that the court has the power to enforce settlement agreements pursuant to Section 664.6 of the Code of Civil Procedure and that the Settlement Agreement encompasses Section 664.6 at paragraph 15. (Motion MPA, pp. 8-10.) Defendants point out that the Settlement Agreement was prepared and reviewed by attorneys for both parties. (*Id.* at pp. 10-12.) Defendants next contend that the broad release and express Civil Code section 1542 waiver bars later asserted claims, including unknown and unanticipated claims. (*Id.* at pp. 10-12.) Defendants also point to specific language in the Settlement Agreement stating that “Haggerty/TMW agrees to honor the warranty on the building for the period of 1 year following notice of completion dated 7/21/23,” which means that any alleged warranty obligations have now expired. (*Id.* at pp. 13-14.) Next, Defendants assert that Plaintiffs’ attempt to avoid enforcement through unilateral mistake does not defeat enforcement because a “mistake” in thinking that the changes adding the Section 1542 waiver were immaterial is not the sort of mistake the law provides relief for. (*Id.* at p. 14.) Finally, Defendants argue that there was consideration for the broader release and that attorney fees are recoverable because the Settlement Agreement contains an attorney fee clause. (*Id.* at pp. 14-15 [Defendants explicitly ask for their attorney fees as the prevailing parties].)

Defendants also filed a declaration of Ryan Haggerty that provides evidentiary support for the positions and arguments in the Motion MPA. (Haggerty Decl. ISO Motion, ¶¶ 1-23.) A declaration of Christopher M. Lea was also filed a declaration requesting that the Court: “enter an order (1) granting this Motion to Enforce Settlement Agreement pursuant to Code of Civil Procedure section 664.6; (2) dismissing with prejudice all claims in the First Amended Complaint as to defendants TMW/HCI; (3) awarding TMW and HCI attorneys’ fees and costs pursuant to the terms of the Final Settlement Agreement; and (4); and directing the Clerk of this Court to enter dismissal with prejudice as to TMW and HCI and update the docket accordingly.” (Lea Decl. ISO Motion, ¶ 8.) Mr. Lea asserts that the fees and costs incurred in this litigation to date equal \$37,068.72. and that counsel for Gordon & Rees will submit a declaration quantifying his attorney fees to date prior to the hearing. (*Id.* at ¶¶ 14-15.)

Opposition

Plaintiffs’ argument in opposition includes a summary of the legal standard for Code of Civil Procedure section 664.6 and an assertion that there was no meeting of the minds on material terms of the Settlement Agreement and the Settlement Agreement does not have mutual assent on the Section 1542 waiver issue. (Opposition, pp. 5-6.) Plaintiffs detail the legal standards for rescission and reformation of a contract and cites *Casey v. Proctor* (1968) 59 Cal.2d 97, 109, to argue that “[t]he mere recital in a release that it covers unknown claims, or that section 1542 is waived, does not by itself bar ‘a claim for injuries later discovered in the absence of a showing of a conscious understanding that if injuries were suffered which had not yet manifested themselves, they too would be discharged by the release.’” (Opposition, pp. 7-8.) Plaintiffs argue that this Motion is procedurally improper because it is essentially a motion for summary adjudication and there are issues of fact that are disputed, such as claims that warranty issues were raised to Defendants within the one-year period and that discovery has been stayed so they have been unable to pursue this issue. (*Id.* at pp. 8-9.) Plaintiffs then argue that the Court should not enforce the close-out agreement because the parties did not have an objective meeting of the minds on all material terms. (*Id.* at pp. 9-12.)

Next, Plaintiffs contend that the Section 1542 waiver language added by Defendants is not broad and unambiguous and that no consideration was exchanged for the broader release language.

(Opposition, pp. 12-13.) Plaintiffs assert that unilateral mistake is grounds for rescinding and/or reforming the Settlement Agreement and that Defendants remain liable for the incomplete warranty obligations. (*Id.* at pp. 13-14.) Finally, Plaintiffs ask for their attorney fees pursuant to the Settlement Agreement. (*Id.* at pp. 14-15.)

Plaintiffs included with their opposition a declaration of Mark Rice, an attorney who assisted with the drafting of the Settlement Agreement, and a declaration of Raymond Rodda, who worked with Defendants on the Settlement Agreement on behalf of Plaintiffs. Mr. Rice states that he did not see or provide any feedback to Plaintiffs related to the redline changes from Defendants that included the Section 1542 waiver. (Rice Decl. ISO Opposition, ¶ 29.) The Rodda declaration provides evidentiary support for the arguments in the Opposition. (Rodda Decl. ISO Opposition, ¶¶ 1-15.)

Reply

Defendants argue on reply that Plaintiffs' opposition ignores Rodda's approval and signature, which establish mutual assent. (Reply, pp. 3-4.) Defendants further contend that the Section 1542 waiver was neither surreptitious nor ambiguous and was approved in writing. (*Id.* at pp. 4-5.) Next, Defendants assert that Plaintiffs have not met their burden of establishing the grounds for rescission or reformation of the Settlement Agreement. (*Id.* at pp. 6-7.) Defendants contend that Attorney Rice's declaration is unavailing and that the Court should reject Plaintiffs' attempt to avoid the bargained for release. (*Id.* at pp. 7-9.) Finally, Defendants argue that Plaintiffs delay in asserting mistake destroys their equitable claims. (*Id.* at pp. 9-10.) Plaintiffs submit a declaration from Christopher M. Lea, with their reply, which presents some deposition testimony of Mr. Rodda relating to the finalization of the Settlement Agreement and his calling of his attorney for assistance in understanding Defendants' proposed changes to the Settlement Agreement. (Lea Decl. ISO Reply, ¶¶ 1-2.)

CCP § 664.6 Request to Enforce Settlement Agreement

Defendants ask this Court to enforce a 2023 settlement agreement arising out of *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643, pursuant to Code of Civil Procedure section 664.6. (MPA ISO Motion, pp. 8-10; Lea Decl. ISO Motion ¶ 8 ["Defendants . . . respectfully request that the Court enter an order (1) granting this Motion to Enforce Settlement Agreement pursuant to Code of Civil Procedure section 664.6 . . ."].)

However, in order to invoke the summary procedure to enforce settlements pursuant to Code of Civil Procedure section 664.6, strict compliance with the code is required. "A request for the trial court to retain jurisdiction under CCP § 664.6 must conform to the same three requirements which the Legislature and the courts **have deemed necessary for § 664.6 enforcement of the settlement itself**: the request must be made (1) during the pendency of the case, not after the case has been dismissed in its entirety. . . ." (*Mesa RHF Partners. L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 917, emphasis added.)

The request to the court that it retain jurisdiction under section 664.6 must be made by the parties. "[A] request that jurisdiction be retained until the settlement has been fully performed must be made either in a writing signed by the parties themselves, or orally before the court by

the parties themselves. . . In this case, the parties could have easily invoked section 664.6 by filing a stipulation and proposed order either attaching a copy of the settlement agreement and requesting that the trial court retain jurisdiction under section 664.6 or a stipulation and proposed order signed by the parties noting the settlement and requesting that the trial court retain jurisdiction under section 664.6. The process need not be complex. But strict compliance demands that the process be followed.

(*Mesa RHF Partners, L.P. v. City of Los Angeles* (2019) 33 Cal.App.5th 913, 918; *Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1424 [“Under section 664.6 of the Code of Civil Procedure, a trial court may enforce a settlement agreement made during pending litigation if the parties entered into the agreement either orally before the court or in writing outside the presence of the court.”].)

Here, in reviewing the 2023 docket for *TMW & Associates, Inc. v. Bluebird Property Investments, et al.*, Contra Costa County Superior Court, case no. C23-02643, the Court has determined that there was never a request made in that case for the court to retain jurisdiction. On November 22, 2023, a request for dismissal was filed that dismissed the case without prejudice, yet there was nothing attached to the document that indicated the Court should retain jurisdiction—it was just a standalone CIV-110 form.

Despite the parties seemingly agreeing between themselves in the Settlement Agreement that CCP §§ 664.6 and 664.7 would apply (FAC, Exh. B, ¶ 15), there was never a request made during the pendency of the 2023 action for the Court to retain jurisdiction. At the time the parties here entered into their settlement agreement and dismissed the 2023 action, CCP section 664.6 authorized the Court to retain jurisdiction to enforce a settlement, “if requested by the parties.” “‘Because of its summary nature, strict compliance with the requirements of section 664.6 is prerequisite to invoking the power of the court to impose a settlement agreement.’ [Citation.]” (*Mesa, supra*, 33 Cal.App.5th at p. 917.)

In *Mesa*, the Court of Appeal rejected the argument that the parties’ signed settlement agreement was sufficient to retain the trial court’s jurisdiction because the agreement was never presented to the court, and the court was never asked to retain jurisdiction, before the case was dismissed. (*Mesa, supra*, 33 Cal.App.5th at p. 918.) There, the fact the parties had a signed agreement for the court to retain jurisdiction alone was not sufficient because “subject matter jurisdiction ‘is not subject to forfeiture or waiver’ and cannot be conferred by ‘estoppel, consent, . . . or agreement.’” (*Id.* at p. 918, fn. 3.)

Here, Defendants dismissed the 2023 action without prejudice on November 22, 2023, and there is nothing in the record to show the parties requested the Court to retain jurisdiction, or that the Court otherwise retained jurisdiction in any way. This lack of jurisdiction does not render any settlement agreement the parties entered into unenforceable. Rather, it simply means it may not be enforced through the summary procedures authorized by CCP § 664.6.

Defendants’ motion to enforce the Settlement Agreement is thus DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

Attorney Fees

Defendants and Plaintiffs have each requested attorney fees. The Settlement Agreement provides attorney fees to the prevailing party, which the Court will determine at a later date in this litigation.

Ruling

Based on the above analysis, Defendants' motion to enforce the settlement agreement is DENIED WITHOUT PREJUDICE to Defendants invoking some other procedure to enforce the settlement agreement.

9. 9:00 AM CASE NUMBER: C26-00770
CASE NAME: JIE SUO VS. GEZHI WENG
COMPLAINT
FILED BY: WENG, GEZHI
TENTATIVE RULING:

Defendant Gezhi Weng's Demurrer to Plaintiff Jie Suo's Complaint is **overruled** in its entirety.

Plaintiff shall prepare a formal order consistent with this ruling and serve notice of entry of order. Defendant shall have 10 days from service of notice of entry to file and serve an answer to the complaint.

I. Background and Allegations of the Complaint

Plaintiff Jie Suo, a Mandarin speaker who cannot speak or read English, met Defendant Gezhi Weng in 2014. (Complaint, ¶¶ 11, 14.) Weng, a licensed bilingual real estate broker and mortgage loan originator running SunRise Realty and Financing out of her home, convinced Suo to purchase a residence at 3128 Marsala Drive in Pittsburg, California (the Property), in early 2015 for \$630,893. (*Id.* ¶¶ 3-4, 12-13, 17-18.) Suo contributed over \$104,000 of her own funds into escrow for the down payment and closing costs. (*Id.* ¶¶ 19, 27.) Rather than shopping for conventional market-rate financing as promised, Weng steered Suo into a private hard-money loan at a 15% interest rate funded by SunCoast Realty, an unregistered entity run by Weng's brother, Yi Weng, and sister-in-law, Ning Qin. (*Id.* ¶¶ 5-7, 22-24.) Weng concealed this family relationship, collected origination fees and uncredited cash payments from Suo, provided English-only documents without required translations, and promised that the 15% loan would be refinanced into a standard mortgage within 45 days. (*Id.* ¶¶ 23, 26, 28-29, 34-36.) Escrow closed and title was conveyed to Suo on March 23, 2015. (*Id.* ¶ 33.)

When Suo pressed to refinance out of the high-interest loan over the following year, Weng claimed she was searching for lenders. (Complaint, ¶¶ 37-38, 42-43.) On October 17, 2016, Weng directed Suo to meet her at a mailbox store in Oakland to sign what Weng represented were standard documents needed to search for a new refinance loan. (*Id.* ¶ 39.) Because the document was untranslated and entirely in English, Suo signed it, unaware that it was actually a Gift Deed transferring a 50% ownership interest in the Property to Weng for zero consideration. (*Id.* ¶¶ 40-41, 84-85.)

In June 2017, Weng arranged a refinance through Sterling Bank to pay off the 15% SunCoast loan. (*Id.* ¶¶ 44, 54.) Weng told Suo that she was merely co-signing as a guarantor because Suo was not a U.S.

citizen; however, Weng negotiated the loan in her own name as the sole borrower with a Sterling Bank loan officer who never spoke to Suo. (*Id.* ¶¶ 46-49, 52.) On June 9, 2017, Weng sent Suo to Stewart Title in Danville to sign an untranslated Deed of Trust that encumbered the Property with a lien for Weng's loan. (*Id.* ¶¶ 46, 48.) Although the refinance proceeds paid off the SunCoast loan, Weng's brother and sister-in-law never recorded a deed of reconveyance, leaving a cloud on title. (*Id.* ¶¶ 54-55, 99.) On July 19, 2017, Weng urgently sent Suo to a UPS Store notary in Concord, claiming the title company had forgotten a routine document. (*Id.* ¶¶ 58-63.) In reality, Weng had Suo execute a \$448,000 Deed of Trust against the Property in favor of Weng's brokerage, SunRise Realty, for which Suo received no consideration. (*Id.* ¶¶ 64-65, 102.)

For the next six years, Suo lived at the Property, paid all property taxes, insurance, and maintenance, and made monthly mortgage payments directly as instructed by Weng. (Complaint, ¶¶ 56, 79–83.) Weng maintained exclusive control over the account, instructed Sterling Bank and subsequent loan servicers never to provide statements or loan details to Suo, and directed Suo to overpay monthly amounts so that Weng could collect overpayment refund checks from the bank. (*Id.* ¶¶ 56-57, 68-70, 73.) On June 15, 2023, Suo filed a voluntary Chapter 7 bankruptcy petition in the United States Bankruptcy Court for the Northern District of California (In re Jie Suo, Case No. 23-40698).

On July 3, 2023, Suo went into a Sterling Bank branch to make a mortgage payment, but a teller refused the payment and explained that Weng was the sole borrower and had blocked anyone else from accessing loan information. (Complaint ¶ 70.) This prompted Suo to obtain a “chain of title for the Property” on July 13, 2023, which is when she first learned that the 2016 Gift Deed and the 2017 SunRise \$448,000 Deed of Trust were recorded against the Property, and that the 2015 SunCoast Deed of Trust was never reconveyed. (*Id.* ¶ 71.) The Bankruptcy Court entered an order abandoning the estate's interest in the Property and claims to Suo. Following that abandonment order, Suo filed this action on March 6, 2026, asserting causes of action for (1) quiet title, (2) reformation of instruments, (3) slander of title, (4) cancellation of instruments, (5) fraud, (6) breach of fiduciary duty, (7) negligence, (8) unfair competition, (9) accounting, and (10) declaratory relief.

Defendant Weng, appearing in pro per, now demurs to the complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f). Weng's central argument is that all of Plaintiff's claims are barred by their respective statutes of limitations because the underlying transactions occurred between 2015 and 2017. Weng argues Plaintiff cannot rely on the delayed discovery rule because the public recording of the deeds and deeds of trust imparted constructive notice of the adverse transfers as a matter of law. Weng also argues the equitable claims for cancellation and reformation fail for lack of an offer to tender the underlying loan proceeds, that the individual causes of action fail to state sufficient facts, and that the complaint is fatally uncertain. Plaintiff opposes the demurrer.

II. Legal Standard

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation, reading it as a whole and its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts properly pleaded, facts that may be reasonably inferred from those expressly pleaded, and matters properly subject to judicial notice. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) A demurrer,

however, does not admit contentions, deductions, or conclusions of fact or law. (*Daar v. Yellow Cab Co.* (1967) 67 Cal.2d 695, 713.)

To survive a demurrer, the complaint need only allege ultimate facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be pleaded. (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

A special demurrer for uncertainty under Code of Civil Procedure section 430.10, subdivision (f) is disfavored and strictly construed; it lies only where the pleading is so incomprehensible that the defendant cannot reasonably determine what issues must be met. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) Where a complaint states the essential facts of a claim, any underlying ambiguities or specific evidentiary details are properly clarified through modern discovery procedures rather than by demurrer. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

III. Preliminary and Procedural Issues

A. Requests for Judicial Notice

Plaintiff's Request for Judicial Notice of various bankruptcy court filings (Exhibits 1–6) is denied. These documents are irrelevant to the disposition of the demurrer, because the complaint's allegations of delayed discovery are independently sufficient to withstand demurrer without reaching the bankruptcy tolling issue. (*People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422, fn. 2 [judicial notice is properly denied where the matter is irrelevant to the disposition of the action].)

Defendant's request for judicial notice presented with the reply papers is also denied. Defendant offers these records on reply to contradict the factual allegations of the Complaint regarding inquiry notice and delayed discovery. Because Defendant had the Complaint in hand and could have raised this argument in the moving papers, raising it for the first time on reply is improper. (*American Drug Stores, Inc. v. Stroh* (1992) 10 Cal.App.4th 1446, 1453 ["[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument"]; *Neighbours v. Buzz Oates Enterprises* (1990) 217 Cal.App.3d 325, 335, fn. 8.)

B. Meet and Confer Requirement

Code of Civil Procedure section 430.41(a) requires that the demurring party meet and confer with the party who filed the pleading that is subject to the demurrer at least 5 days before the date the responsive pleading is due, by telephone or in person, for the purpose of determining if the parties can resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41.) The demurring party must file and serve a declaration detailing their meet and confer efforts.

There is no indication that Defendant complied with her meet and confer obligations. In the future, the Court may continue the hearing on any demurrer for the parties to properly meet and confer over the telephone and the Court deny motions filed without a meet and confer if required for those motions. As the failure to meet and confer is not a ground to overrule the demurer (Code Civil Proc. § 430.41(a)(4)), the Court turns to the merits.

C. Procedural Deficiencies in Defendant's Reply

Defendant's reply memorandum is 17 pages (without the required table of authorities). This is improper.

"[P]ro per litigants are held to the same standards as attorneys." (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543.) "[M]ere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation. ... A doctrine generally requiring or permitting exceptional treatment of parties who represent themselves would lead to a quagmire in the trial courts, and would be unfair to the other parties to litigation." (*Rappleyea v. Campbell* (1994) 8 Cal.4th 375, 384-385, citation omitted.)

Defendant is admonished that her self-represented status does not excuse her from adhering to the California Rules of Court or the settled rule that a reply memorandum cannot be used to raise new points that could have been presented at the outset. (*American Drug Stores*, 10 Cal. App. 4th at 1453; *Neighbours*, 217 Cal. App. 3d at 335 n.8.)

While the Court exercises its discretion to consider the reply brief despite these procedural deficiencies, it places Defendant on notice that future noncompliant filings may be stricken or disregarded. The Court's reasons for considering these issues are related to consistency and efficiency. Absent those considerations, these procedural deficiencies would alone have been fatal to portions of Defendant's arguments.

IV. Statute of Limitations and Delayed Discovery

Weng's central argument is that plaintiff's claims are barred by their respective two-to-four year statutes of limitations because the underlying transactions occurred between 2015 and 2017, while the lawsuit was not filed until March 2026. The Court is not persuaded by Defendant's demurrer arguments and will overrule the demurrer.

"[A] demurrer on the ground of the bar of the statute of limitations does not lie where the complaint merely shows that the action may have been barred. It must appear affirmatively that, upon the facts stated, the right of action is necessarily barred." (*Stueve Bros. Farms, LLC v. Berger Kahn* (2013) 222 Cal.App.4th 303, 313.) However, where the action is untimely on the face of the complaint, the plaintiff must allege facts showing tolling or delayed accrual. (See *Carrillo v. County of Santa Clara* (2023) 89 Cal.App.5th 227, 234 ["To rely on the discovery rule for delayed accrual of a cause of action, a plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence."].)

Here, no defect in the statute of limitations appears on the face of the complaint because sufficient facts are pleaded relative to the delayed discovery of Defendant's allegedly wrongful conduct. Under the discovery rule, accrual begins when a plaintiff actually suspects, or reasonably should suspect, that wrongful conduct caused her harm. (*Norgart v. Upjohn Co.* (1999) 21 Cal.4th 383, 397-398.) The complaint alleges that: (1) Plaintiff could not read English; (2) Defendant was Plaintiff's bilingual real estate broker and mortgage agent; (3) Defendant falsely described the true nature of the "Gift" Grant

Deed and SunRise Deed of Trust; and (4) Plaintiff discovered the true nature of Defendant's conduct only after Sterling Bank refused her mortgage payment and advised her that she was not the borrower, which caused Plaintiff to have someone assist her in obtaining the chain of title in July 2023 and explain the discovered documents to her in Mandarin. (See Complaint, ¶¶ 13-14, 39-41, 46, 61-71.)

These allegations adequately state when and how discovery occurred and why earlier discovery was not reasonably made, which is sufficient to survive demurrer.

A. Constructive Notice by Recordation

Defendant contends that the statute of limitations began to run on all causes of action when the grant deed and the Sterling Bank deed of trust were recorded in 2016 and 2017, respectively, because their recording imparted constructive notice to Plaintiff.

This issue was addressed in *Arthur v. Davis* (1981) 126 Cal.App.3d 684, wherein Davis, a real estate broker, obtained the signatures of the married Arthur homeowners on a grant deed conveying interest in their home to Davis by misrepresenting the grant deed's true nature. The "Arthurs made all the mortgage payments and handled all the repairs and maintenance on the property." The trial court found for, the then widowed, Ms. Arthur ordering the deed cancelled and title quieted. (*Id.* at 688-690.)

Davis argued that the Arthurs' claims were time barred on appeal because the slander of title occurred with the recording of the fraudulent deed more than four years prior to their discovery of the fraud. *Arthur* rejected that argument holding "a cause of action for slander [of title] or libel does not accrue until the plaintiff 'could reasonably be expected to discover its existence.'" (*Id.* at 692.) Likewise, the court rejected the proposition that homeowners should be required to regularly examine their own chain of title finding, "the constructive notice imparted by virtue of the recording statutes has no applicability here. Such notice is designed to inform prospective purchasers and mortgagees regarding the status of title to the property. Were the rule otherwise, an owner and possessor of real property would be required to periodically check the official records for wild deeds to insure that the statute of limitations on a slander of title action had not run." (*Id.* at 691, n.4 [internal citations omitted].)

Defendant attempts to distinguish *Arthur*, arguing it applied only to an innocent owner excused from checking public records for "wild deeds," rather than a signer who executed the instruments herself. But to prevail on demurrer, Defendant must show the action is time-barred on the face of the pleading. Without authority establishing that recording imparts constructive notice against a property owner whose signature was procured through a fiduciary's deception, Defendant fails to carry that burden.

B. Inquiry Notice and Plaintiff's Execution of Documents

On reply, Defendant shifts ground. Rather than maintaining her original argument that the recorded documents imparted constructive notice sufficient to trigger the statute of limitations as a matter of law, Defendant argues that Plaintiff was on inquiry notice from the outset, which purportedly defeats her allegations of delayed discovery as a matter of law. In support of this position, Defendant argues

that Plaintiff personally executed the instruments and is presumed to know their contents, and that fraudulent concealment cannot independently toll the statute of limitations under *Parsons v. Tickner* (1995) 31 Cal.App.4th 1513. Defendant also argues in responsive fashion that the automatic bankruptcy stay did not toll the statute of limitations on affirmative claims brought by Plaintiff (an argument the Court does not reach because the allegations of delayed discovery are independently sufficient).

To the extent these are arguments that could have been raised in the moving papers, raising them for the first time on reply is improper, and they arguably should not be considered. Nevertheless, the Court considers the arguments because they do not provide a basis to sustain the demurrer.

Defendant argues that Plaintiff's own allegations establish multiple warning signs that should have placed Plaintiff on inquiry and prompted an earlier investigation. First, Defendant argues that Plaintiff's understanding in June 2017 that Defendant was acting as a co-signer on the Sterling Bank loan was enough to alert a reasonable person that Defendant claimed an interest in the loan and the Property, and that Defendant's alleged exclusive control over the account and instruction to withhold loan statements from Plaintiff were red flags. Second, Defendant points to Plaintiff's execution of the Gift Deed in October 2016, arguing that when Defendant failed to secure a refinance and kept Plaintiff in the high-interest SunCoast loan, a reasonable person would have investigated what instrument she had actually signed. Third, Defendant argues that when Plaintiff executed the SunRise Deed of Trust in July 2017 upon her representation that the title company forgot a document, the inconsistency of executing an encumbrance in favor of SunRise Realty for a refinance purportedly through Sterling Bank would have prompted a diligent person to inquire. Finally, citing to *WA Southwest 2, LLC v. First American Title Ins. Co.* (2015) 240 Cal.App.4th 148, Defendant asserts that "[a] non-English speaker who signs legal documents affecting title to real property without seeking translation or independent counsel cannot later invoke that choice as a basis for extending the statute of limitations indefinitely." (Reply, 8:6–9.)

Defendant's reliance on *WA Southwest 2* for the proposition that failure to obtain an independent translation of English-language legal documents defeats delayed discovery as a matter of law is misplaced. *WA Southwest 2* did not involve non-English speakers, language barriers, or any requirement that a party obtain an independent translation of documents or legal counsel (it did, however, recognize that a fiduciary relationship limits the duty of inquiry and postpones accrual until the plaintiff has actual notice of the fiduciary's wrongdoing). (*WA Southwest 2, supra*, 240 Cal.App.4th at p. 157.)

Whether a reasonably prudent person would have been under a duty of inquiry is a question of fact and may not be resolved on demurrer as a matter of law unless "reasonable minds can draw but one conclusion" from the facts alleged in the complaint. (*Baright v. Willis* (1984) 151 Cal.App.3d 303, 311; *E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1320.) Given the alleged fiduciary relationship, Plaintiff's inability to read English, and Defendant's affirmative misrepresentations concerning the purpose and effect of the documents, reasonable minds could conclude that Plaintiff acted reasonably in relying on her broker rather than suspecting wrongdoing. Accordingly, the notice issue cannot be determined as a matter of law at this stage.

Because the Court finds that the complaint adequately alleges delayed discovery, the Court need not and does not reach Plaintiff's alternative bankruptcy tolling argument or determine whether

fraudulent concealment operates as an independent theory of tolling outside the discovery rule.

IV. Sufficiency of Individual Causes of Action

In her moving papers, Defendant raised only cursory objections to the complaint. On reply, Defendant impermissibly expands the demurrer, raising substantive challenges to the quiet title, fraud, and fiduciary duty claims for the first time, while attacking the slander of title, UCL, and accounting claims that were omitted from her moving memorandum. Although new arguments on reply are improper, even considering them on the merits, Defendant fails to show that her demurrer should be sustained. The complaint alleges facts sufficient to state each asserted cause of action against Weng (the second cause of action is against U.S. Bank only).

A. First Cause of Action for Quiet Title

To assert a claim of quiet title of a real property, Plaintiff's complaint was required to include: (1) the legal description and street address of the real property at issue, (2) title sought and the basis of the same, (3) any adverse claims against the title Plaintiff seeks, (4) date of which the determination is sought, and lastly (5) a prayer for relief. (Code Civ. Proc., § 761.020.)

Plaintiff adequately pleads the statutory elements under Code of Civil Procedure section 761.020 by identifying the subject property, specifying the grant deed upon which her fee title is based, identifying Defendant's adverse claims under the purported gift deed, establishing the date as of which determination is sought, and praying for title to be quieted in Plaintiff alone. (Complaint, ¶¶ 39-41, 61-71, 74-91.)

Defendant's contention on reply that the 2016 deed naming both parties as tenants in common defeats the claim as a matter of law is unavailing. Plaintiff specifically alleges that the "Gift" grant deed conveying a 50% tenancy-in-common interest to Defendant Weng was fraudulently procured.

B. Third Cause of Action for Slander of Title

The elements of a cause of action for slander of title are "(1) a publication, (2) which is without privilege or justification, (3) which is false, and (4) which causes direct and immediate pecuniary loss." (*Alpha & Omega Development, LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 664.)

Here, Plaintiff sufficiently alleges facts establishing each element. Specifically, Plaintiff alleges that Defendant published and recorded unprivileged, false title instruments, including the gift deed, with knowledge or reckless disregard of their falsity, directly casting doubt on Plaintiff's ownership interest and causing pecuniary loss. (Complaint, ¶¶ 39-41, 61-71, 97-112.) These allegations are sufficient to withstand demurrer.

Defendant argues on reply that Plaintiff is estopped from asserting slander of title because she signed and notarized the Gift Deed and SunRise Deed of Trust. But Defendant cites no authority applying estoppel on demurrer where the plaintiff alleges that her signature was procured through fraud by a fiduciary.

C. Fourth Cause of Action for Cancellation of Instruments

A claim for cancellation of instruments requires (1) facts demonstrating the invalidity of the instrument under attack, and (2) that the instrument, if left outstanding, may cause serious injury to a person against whom it is void or voidable. (Civ. Code, sec. 3412; *Thompson v. Ioane* (2017) 11 Cal.App.5th 1180, 1193-1194.)

Plaintiff properly identifies the written instruments encumbering or clouding title and alleges specific facts showing that they were void or voidable due to fraud in the inception and lack of consideration. (Complaint, ¶¶ 39-41, 61-71, 113-125.) An allegation of tender is excused because Plaintiff challenges the underlying existence and validity of the obligations rather than procedural irregularities in a completed foreclosure. (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 112-113.)

D. Fifth Cause of Action for Fraud

The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or “scienter”); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.” (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

Plaintiff pleads the requisite elements with sufficient particularity by alleging the specific misrepresentations and intentional concealments regarding the nature of the transaction documents, the speaker, the lack of English language translations, Plaintiff’s justifiable reliance in light of the language barrier, and resulting damage. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 126-138.)

E. Sixth Cause of Action for Breach of Fiduciary Duty

The elements of a cause of action for breach of fiduciary duty are: (1) existence of a fiduciary duty; (2) breach of the fiduciary duty; and (3) damage proximately caused by the breach. (*Slovensky v. Friedman* (2006) 142 Cal. App. 4th 1518, 1534.)

Plaintiff adequately alleges that Defendant acted as her licensed real estate broker and mortgage loan originator, creating fiduciary obligations under Civil Code section 2923.1 and Business and Professions Code section 10131, which Defendant breached through self-dealing, nondisclosure of material terms, and fraudulent execution of title and loan instruments. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 139-155.)

F. Seventh Cause of Action for Negligence

The essential elements of a negligence cause of action are (1) duty, (2) breach, (3) causation, and (4) damages. (See *Quelimane Co. v. Stewart Title Guar. Co.* (1998) 19 Cal.4th 26, 57.)

Plaintiff sufficiently alleges that Defendant owed a duty of due care in handling the transactions alleged in the complaint, breached those duties, and proximately caused damage to Plaintiff. (Complaint, ¶¶ 13-14, 39-41, 46, 61-71, 156-170.)

G. Eighth Cause of Action for Violation of the Unfair Competition Law (UCL)

The necessary elements for violation of the UCL are: (1) a business practice; (2) that is unfair, unlawful, or fraudulent; and (3) an authorized remedy. (Bus. & Prof. Code, § 17200; *Paulus v. Bob Lynch Ford, Inc.* (2006) 139 Cal.App.4th 659, 676.)

Here, Plaintiff alleges facts demonstrating unlawful, unfair, and fraudulent business practices in the procurement and recording of unauthorized real estate instruments, resulting in economic injury. (Complaint, ¶¶ 13-14, 39-71, 171-173.)

H. Ninth Cause of Action for Accounting

An action for an accounting has two elements: (1) that a relationship exists between the plaintiff and defendant that requires an accounting and (2) that some balance is due the plaintiff that can only be ascertained by an accounting. (*Sass v. Cohen* (2020) 10 Cal. 5th 861, 869.)

Contrary to Defendant's characterization on reply, the complaint sufficiently alleges facts to support an action for an accounting. Plaintiff incorporates her prior allegations that Defendant acted as her fiduciary and broker, and expressly alleges that between 2015 and 2023, Defendant received loan payments on the SunCoast and Sterling loans that included uncredited overpayments of principal, interest, and undisclosed fees due back to Plaintiff. (*Id.* ¶¶ 177, 181.) Plaintiff further alleges that the specific amount owed cannot be determined without an accounting of Defendant's receipts and disbursements, and that Defendant has refused demands to provide an accounting. (*Id.* ¶¶ 178-179, 182-183.)

I. Tenth Cause of Action for Declaratory Relief

"Any person ... who desires a declaration of his or her rights or duties with respect to another ... may, in cases of actual controversy relating to the legal rights and duties of the respective parties, bring an original action or cross-complaint in the superior court for a declaration of his or her rights and duties" (Code Civ. Proc., § 1060.) "The fundamental basis of declaratory relief is an actual, present controversy." (*Tashakori v. Lakis* (2011) 196 Cal.App.4th 1003, 1012.)

Plaintiff's allegations demonstrate a present controversy over the parties' respective rights to the property and the validity of the various instruments. Because the underlying substantive claims survive demurrer, an actual, justiciable controversy exists supporting the claim for declaratory relief. (Complaint, ¶¶ 179-185.)

VI. Uncertainty

Defendant demurs on grounds of uncertainty under Code of Civil Procedure section 430.10, subdivision (f). A demurrer for uncertainty will be sustained only where the pleading is so incomprehensible that the defendant cannot reasonably determine what issues she must meet or respond to. (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Here, the allegations are more than sufficient to apprise Defendant of the claims and conduct asserted against her, and any ambiguity can be clarified in discovery. As such, the uncertainty

demurrer is overruled.

VII. Disposition

Based on the foregoing, the demurrer is **overruled**. Plaintiff shall prepare a formal order consistent with this ruling and serve notice of entry of order. Defendant shall have 10 days from service of notice of entry to file and serve an answer to the complaint.

10. 9:00 AM CASE NUMBER: C26-00970

CASE NAME: RONDA HUDDLESTON VS. NEWREZ LLC

FOR LEAVE TO RECORD LIS PENDENS; MPA ISO

FILED BY: HUDDLESTON, RONDA

TENTATIVE RULING:

Plaintiff Ronda Huddleston seeks leave to record a lis pendens in this matter. Defendant Newrez LLC has filed no opposition. Moreover, at the most recent Case Management Conference, Defendant informed the Court that Ms. Huddleston was in the final stages of a loss mitigation resolution to this matter. For these reasons, the Court **grants** Plaintiff's Motion.

11. 9:00 AM CASE NUMBER: MSC20-00933

CASE NAME: WILLIAMS V. FARTHING

FILED BY: FARTHING, DAVID

TENTATIVE RULING:

This case was filed on May 22, 2020. On December 11, 2024, the Court entered a default judgment against Defendant David Farthing in the amount of \$59,290. On December 31, 2025, Farthing filed a Motion to Set Aside the Default Judgment. At that time, he was acting in pro per. The hearing was set for June 25, 2026. On June 22, 2026, counsel for Farthing filed a Motion to Continue the hearing so that an amended motion could be filed. The hearing was continued to August 27, 2026. Since that date, Farthing has not filed an amended motion, and Plaintiff Leslie Jo Williams has filed nothing at all (indeed she has filed nothing since December 11, 2024). Given that the Court continued the Motion for the explicit purpose of having attorney supplementation, the present motion is **denied without prejudice** for additional information related to the statutory bases for setting aside a default.

12. 9:00 AM CASE NUMBER: N25-1239

CASE NAME: ALEXANDER CAINE VS. DOES 1-20, INCLUSIVE.

PETITION FOR WRIT OF MANDATE

FILED BY:

TENTATIVE RULING:

The Court continues this hearing until September 3, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: N26-0717
CASE NAME: ANTHONY BETTENCOURT VS. THE DEPARTMENT OF MOTOR VEHICLES
WRIT OF MANDATE - DMV
FILED BY: BETTENCOURT, ANTHONY
TENTATIVE RULING:

This hearing was vacated on June 29, 2026.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C24-03209
CASE NAME: JENISE HAMBLIN VS. DOES 1 THROUGH 50 INCLUSIVE
COMPEL FURTHER RESPONSES
FILED BY: HAMBLIN, JENISE KAY
TENTATIVE RULING:

Plaintiff Jenise Hamblin filed this Motion to Compel Further Responses to Requests for Production of Documents. The parties initially agreed to continue the hearing on this Motion, as there was a change in counsel for Defendant Artemio Hernandez. In advance of the new hearing date, on April 30, Hernandez served amended discovery responses. On August 14, 2026, Hernandez filed an opposition to the original Motion, arguing it is now moot. On August 20, 2026, Hamblin filed a reply, arguing remaining deficiencies in the discovery responses as well as a live issue of sanctions.

The Court notes that the parties' briefing was not as helpful as it could have been. Given the amended responses, Hernandez's opposition brief should have been more than two substantive pages; it should have responded specifically to the issues raised by Hamblin's separate statement. Similarly, Hernandez articulated that between the service of amended responses at the end of April and the filing of the opposition brief in August, counsel received *no* information regarding ongoing deficiencies. Although both parties have technically complied with the meet and confer requirements, compliance with the spirit of those requirements is sorely lacking, resulting in difficulty resolving this motion. As further explained below, the Court **grants in part and denies in part** Hamblin's Motion.

Waiver of Objections

It appears not to be a matter of dispute that Hernandez's former attorney failed to respond to discovery adequately. The original response to the Request for Production of Documents did not even mention Requests beyond number 9, and counsel ignored those requests in the meet and confer correspondence. New counsel has served amended responses that resolve many of these issues. Hamblin argues that Hernandez's objections are waived, pursuant to Code of Civil Procedure section 2031.300. This appears to be accurate, given the record before this Court. The issue is, however, to the extent that Hernandez is withholding production of any of these documents on any of the objections, they appear to be grounds such as privacy interests of third parties, and attorney-client

privilege, neither of which is waivable by Hernandez's former attorney. The Court fails to see how any waiver has any application to the documents that are subject to production at this time.

Specific Requests

Request for Production No. 1

This request seeks communications between Defendant and other individuals related to this action. Plaintiff believes the production lacks communications between Hernandez and his insurance company as well as between him and his employer, friends, and family. Hernandez's amended response identifies photographs, but no other communications. There is no statement that this is the entire universe of possible documents, so it is impossible to tell whether Hernandez has undertaken a thorough search and whether any documents are being withheld.

Request for Production Nos. 7 and 9

This request seeks documents relating to Defendant's son Abraham Hernandez's communications. Regardless of his status as Defendant's son, he is still a third party. Plaintiff can seek *Defendant's* documents related to the third party, but documents from a third party himself are not properly sought through these forms of discovery. Hamblin fails to cite any cases permitting the discovery sought. Hernandez's response is sufficient and no further response will be compelled.

Request for Production No. 8

Hernandez's employment records that refer or relate to this action. Hernandez is only obligated to produce such documents in his possession, custody, or control. He is under no obligation to retrieve these from his employer. Further, a word of caution: Before Hamblin subpoenas these documents from Hernandez's employer, she must consider the limited scope of documents that could possibly be relevant, and further the limited scope of relevance to the actual issues in this case. Hamblin asserts that she is seeking to understand whether Hernandez was within the scope of his employment at the time. That is a valid inquiry, but is far more limited than what could be interpreted from the current language of Request for Production No. 8. Hernandez's response is sufficient and no further response will be compelled.

Request for Production Nos. 10-13

These requests seek communications between Hernandez and his son relating to the accident. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has reported that "after a diligent search and reasonable inquiry, Responding Party has determined that no responsive, non-privileged documents are in his possession, custody, or control." Hernandez's response is sufficient and no further response will be compelled.

Request for Production Nos. 14-17

These requests seek communications between Hernandez and the California Highway Patrol. Although Hamblin states that no response was received, that is not accurate. For each of these responses,

Hernandez has reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production Nos. 18-21

These requests seek communications between Hernandez and his insurance company relating to the accident. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has provided his declaration page. He has not, however, reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so.

Request for Production Nos. 22-25

Through these requests, Hamblin purports to seek documents relating to “nonprivileged communications between the defendant and his counsel.” The requests themselves do not explain how there could be any such documents. In her reply brief, Hamblin finally explains the mystery, noting that there may be “communications also involving third parties that break the attorney-client privilege.” Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production Nos. 26-29

These requests seek communications between Hernandez and the towing company. Although Hamblin states that no response was received, that is not accurate. For each of these responses, Hernandez has identified the towing company and reported that “after a diligent search and reasonable inquiry, Responding Pary has determined that no responsive, non-privileged documents are in his possession, custody, or control.” Hernandez’s response is sufficient and no further response will be compelled.

Request for Production No. 30

This request seeks communication between Hernandez and his insurance company relating to the insurance policy. Although Hamblin states that no response was received, that is not accurate. Hernandez produced his declarations page. He has not, however, reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so. It is hard to believe that no further communications occurred with his insurance company and those documents must be produced.

Request for Production Nos. 31-36

These requests seek documents to support affirmative defenses 1-7. Although Hamblin states that no response was received, that is not entirely accurate. Hernandez refers to “Exhibits A-C.” The Court

cannot discern what this is referring to, and therefore cannot tell whether Hernandez has produced responsive documents. He has also not reported whether he has engaged in a diligent search and reasonable inquiry and whether all responsive documents have been produced. He must do so.

Lack of Privilege Log

The only documents reportedly withheld are documents between Hernandez and his counsel. If that is accurate, no privilege log is required. A privilege log is only useful and necessary when there are documents that could arguably not be privileged, such as those involving third parties.

Sanctions

Hamblin is correct that the Motion is not moot. Hernandez's production remains deficient in certain small ways, and a Motion to Compel is not mooted by the service of amended responses. Nor is Hernandez incorrect that many of these issues could have been addressed by further meeting and conferring since April 30, 2026. Given Hernandez's prior counsel's delinquencies with respect to discovery responses, which was substantially remedied by new counsel's amended responses, and Hamblin's counsel's failure to engage in any meeting and conferring since April 30, 2026, the Court considers sanctions to be inappropriate in this circumstance and declines to award them.